

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #11	CCRB Case #: 201900505	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 12/21/2018 6:45 AM	Location of Incident: the 120th Precinct stationhouse and § 87(2)(b)	Precinct: 120	18 Mo. SOL 6/21/2020	EO SOL 2/5/2021	
Date/Time CV Reported Thu, 01/17/2019 10:39 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 01/11/2019 2:45 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT2 Tabatha Bronstein	01546	922026	120 DET
2. DT3 Ryan Staiano	00215	945027	120 DET
3. DT3 Richard Dinkle	07431	934780	120 DET
4. SGT Joseph Dalbero	00983	944479	120 DET
5. POM Stephen Dunne	05439	940111	120 PCT
6. POM Anthony Limoncelli	04374	959757	120 PCT
7. POM John Tepedino	20966	963298	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. Officers			Unknown
2. POM Joseph Quirk	01132	957978	120 PCT
3. POM Christophe Adinolfi	21566	959441	120 PCT
4. POM Andrew Ortegaobrien	15831	957923	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM John Tepedino	Abuse: On December 21, 2018, Police Officer John Tepedino entered § 87(2)(b) on Staten Island.	§ 87(2)(b)
B.POM Anthony Limoncelli	Abuse: On December 21, 2018, Police Officer Anthony Limoncelli entered § 87(2)(b) on Staten Island.	§ 87(2)(b)
C.POM Stephen Dunne	Abuse: On December 21, 2018, Police Officer Stephen Dunne searched § 87(2)(b) on Staten Island.	§ 87(2)(b)
D.SGT Joseph Dalbero	Abuse: On December 21, 2018, Sergeant Joseph Dalbero supervised the search of § 87(2)(b) on Staten Island.	§ 87(2)(b)
E.DT2 Tabatha Bronstein	Abuse: On December 21, 2018, Detective Tabatha Bronstein searched § 87(2)(b) on Staten Island.	§ 87(2)(b)
F.DT3 Ryan Staiano	Abuse: On December 21, 2018, Detective Ryan Staiano searched § 87(2)(b) on Staten Island.	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
G.DT3 Richard Dinkle	Off. Language: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle made remarks to § 87(2)(b) based upon gender.	
H.DT3 Richard Dinkle	Discourtesy: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle spoke discourteously to § 87(2)(b)	
I.DT3 Richard Dinkle	Abuse: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle detained § 87(2)(b)	
J.DT3 Richard Dinkle	Abuse: On December 21, 2018, at the 120th Precinct stationhouse, Detective Richard Dinkle did not provide § 87(2)(b) with medical attention.	
K.DT3 Richard Dinkle	Abuse: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle seized § 87(2)(b)'s property.	
L.DT3 Richard Dinkle	Off. Language: On January 8, 2019, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle made remarks to § 87(2)(b) based upon gender.	
M.DT3 Richard Dinkle	Discourtesy: On January 8, 2019, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle spoke discourteously to § 87(2)(b)	
N.POM John Tepedino	Abuse: On December 21, 2018, at § 87(2)(b) on Staten Island, Police Officer John Tepedino did not provide a business card to § 87(2)(b)	
O.POM Anthony Limoncelli	Abuse: On December 21, 2018, at § 87(2)(b) on Staten Island, Police Officer Anthony Limoncelli did not provide a business card to § 87(2)(b)	
P.POM Stephen Dunne	Abuse: On December 21, 2018, at § 87(2)(b) on Staten Island, Police Officer Stephen Dunne did not provide a business card to § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint in person with the CCRB on January 11, 2019. § 87(2)(b) was § 87(2)(b) old at the time of filing. He filed this complaint both for himself and on behalf of his mother, § 87(2)(b) and his sister, § 87(2)(b).

§ 87(2)(b)
On § 87(2)(b), he received treatment at § 87(2)(b).

After § 87(2)(b) went to the hospital, at approximately 6:45 a.m. PO John Tepedino and PO Anthony Limoncelli of the 120th Precinct went to his residence, at § 87(2)(b) on Staten Island. Present were his mother, § 87(2)(b) his sister, § 87(2)(b) and § 87(2)(b)'s boyfriend § 87(2)(b). **(Allegation A- Abuse of Authority- § 87(2)(g) Allegation B-Abuse of Authority- § 87(2)(g) and they were followed shortly thereafter by PO Stephen Dunne of the 120th Precinct, who led PO Limoncelli and PO Tepedino in searching the residence (Allegation C- Abuse of Authority- § 87(2)(g)**

At approximately 9:10 a.m. on December 21, 2018, Sgt. Joseph Dalbero of the Staten Island Night Watch Detective Squad along with Det. Tabatha Bronstein and Det. Ryan Staiano of the 120th Precinct Detective Squad, also responded and joined the other officers already inside of the residence. Sgt. Dalbero, Det. Bronstein and Det. Satino searched § 87(2)(b) after Sgt. Dalbero allegedly received consent from § 87(2)(b) to do so **(Allegation D- Abuse of Authority- § 87(2)(g) Allegation E- Abuse of Authority- § 87(2)(g) Allegation F- Abuse of Authority- § 87(2)(g)**

Around 7:40 a.m. on December 21, 2018, § 87(2)(b) was discharged from § 87(2)(b) and voluntarily went to the 120th Precinct stationhouse, escorted by PO Christopher Adinolfi and PO Joseph Quirk. At the stationhouse, Det. Richard Dinkle of the 120th Precinct Detective Squad allegedly called § 87(2)(b) a “bitch-ass motherfucker” **(Allegation G- Offensive Language- § 87(2)(g) Allegation H- Discourtesy- § 87(2)(g)** He also allegedly detained § 87(2)(b) at the 120th Precinct stationhouse for about 11 hours, and did not permit him to leave and obtain further medical treatment, which § 87(2)(b) allegedly requested **(Allegation I-Abuse of Authority- § 87(2)(g) Allegation J- Abuse of Authority- § 87(2)(g)** He also seized § 87(2)(b)'s cellphone **(Allegation K- Abuse of Authority- § 87(2)(g)**

On January 8, 2019, § 87(2)(b) was arrested at § 87(2)(b) on Staten Island, not in relation to the shooting incident on § 87(2)(b), and taken to the 120th Precinct stationhouse, where he was debriefed by Det. Dinkle. Det. Dinkle allegedly called § 87(2)(b) a “bitch-ass motherfucker” an additional time **(Allegation L- Offensive Language- § 87(2)(g) Allegation M- Discourtesy).**

On December 21, 2018, while they were at § 87(2)(b) on Staten Island, PO Tepedino, PO Limoncelli, and PO Dunne all failed to provide § 87(2)(b) with business cards **(Allegation N- Abuse of Authority- § 87(2)(g) Allegation O- Abuse of Authority- § 87(2)(g) Allegation P- Abuse of Authority- § 87(2)(g) § 87(4-b), § 87(2)(g)**

On January 17, 2019, this complaint was assigned to Inv. Benjamin Shelton, but on January 10, 2020, it was reassigned to the undersigned § 87(2)(g)

No civilian was arrested as a result of the December 21, 2018 incident. (Board Review 01).

There are two body-worn camera videos of this incident from PO Dunne's body- worn camera, excerpted and summarized below (Board Reviews 08 and 09).

Findings and Recommendations

Allegation (A) Abuse of Authority: On December 21, 2018, Police Officer John Tepedino entered § 87(2)(b) on Staten Island.

Allegation (B) Abuse of Authority: On December 21, 2018, at § 87(2)(b) on Staten Island, Police Officer Anthony Limoncelli entered § 87(2)(b) on Staten Island.

§ 87(2)(b) an ambulance was called to take him from his residence at § 87(2)(b) on Staten Island to § 87(2)(b) early in the morning on § 87(2)(b). It is also undisputed that PO Tepedino and PO Limoncelli were the first officers to arrive on scene after they received a call for a self-inflicted gunshot wound. § 87(2)(g)

There is no video footage of the initial entry of § 87(2)(b)

The complainant in this case, § 87(2)(b) was not present at § 87(2)(b) when police officers entered his home. The only information he gave about the gunshot wound was that it was not self-inflicted (Board Review 36).

§ 87(2)(b) said in an unverified phone statement that five officers came to her house and entered without announcing themselves or asking for consent, and asked what happened. She told them that § 87(2)(b) was injured, and that he went to the hospital. She did not provide a sworn statement to the investigation after multiple calls and letters, and after missing a scheduled field interview (Board Review 02).

§ 87(2)(b) reported over the phone that the officers were called after paramedics came to the house. The officers did not ask if they could go into the location. The officers said that they had to look around because § 87(2)(b) possibly shot himself. (Board Review 03). § 87(2)(b) did not provide a sworn statement to the investigation after multiple calls, letters, and emails.

§ 87(2)(b) could not be reached by the investigation despite multiple letters, calls, and emails (Board Review 04).

PO Tepedino testified that he received a radio run transmitted over the radio for a potential gunshot victim at the residence. When he arrived, the door was wide open. EMS was not on scene. PO Tepedino entered the residence to investigate the alleged shooting. He did so without speaking to any other officer. Once he was inside, he observed a pool of blood in the living room, next to the front door (Board Review 28).

PO Limoncelli's testimony was similar to PO Tepedino's: that he responded to a radio run, arrived at the open door of the residence, and went inside absent any discussion with other officers or residents of the apartment. He went inside to investigate the circumstances of the alleged shooting. No one complained of his presence inside of the residence (Board Review 27).

Event Information § 87(2)(b) was initially reported as a § 87(2)(b)-old male individual with a leg wound at § 87(2)(b) on Staten Island. EMS requested a police vehicle to respond for a self-inflicted gunshot wound at 6:09 a.m. The location was updated by EMS as § 87(2)(b) at 6:22 a.m. Unit RES3-1, which included PO Limoncelli and PO Tepedino, was dispatched to § 87(2)(b) at 6:25 a.m. and they arrived at 6:45 a.m. The Event does not any officers arriving at § 87(2)(b) before (Board Review 31). Police radio recordings associated with Event § 87(2)(b) indicated that Sgt. Lara McNab, of the 120th Precinct, dispatched PO Limoncelli and PO Tepedino to § 87(2)(b) over the radio after she responded to the hospital. There was no specific reason given over the radio for dispatching these officers (Board Review 05 and Board Review 06).

The emergency doctrine outlined in People v. Doll, 98 A.D.3d 356 (2012) allows police warrantless intrusion should they be "confronted with an immediate need to provide aid or assistance to a possibly injured individual" (Board Review 35). In People v. Gibson 117 A.D.3d 1317 (2014) it was ruled that officers' entry into a building where an armed person had reportedly gone was permissible under the emergency exception, so that the officers could look for any injured

or armed persons (Board Review 38).

In this case, PO Limoncelli and PO Tepedino had learned via radio run that there was a gunshot wound victim removed from the scene. At the time of the officers arrived, the front door to the premises was open. § 87(2)(g)

§ 87(2)(g)

Allegation (C) Abuse of Authority: On December 21, 2018, Police Officer Stephen Dunne searched § 87(2)(b) on Staten Island.

It is undisputed that PO Dunne arrived at § 87(2)(b) after PO Limoncelli and PO Tepedino had entered the premises, and that he searched the residence.

The NYPD provided are two body-worn camera videos for PO Dunne's search of § 87(2)(b) on Staten Island. They both take place inside of § 87(2)(b) and do not capture PO Dunne's initial entry into the residence.

The first video shows PO Dunne entering a back room and shining his flashlight (Board Review 08, timestamps 00:00:00 to 00:00:41 in the video player). A small child, perhaps about four to five years old, is visible at the 00:00:23 mark.

The second video shows PO Dunne informing § 87(2)(b) that he is concerned about the child in the residence, and that he wished to look around the apartment without "ransack[ing] anything." He informs § 87(2)(b) that he is recording her consent on his body-worn camera, and § 87(2)(b) says that he can look around (Board Review 09, timestamps 00:00:30 to 00:00:55 in the video player). PO Dunne looks into multiple closets, a bedroom, the drawers of a bedside table, the drawers of another piece of furniture, the sheets of one of the beds, and a plastic bag. He moves said bedside table, a fan, and curtains and looks behind them.

§ 87(2)(b) said over the phone that once five uniformed officers entered her home, they went into her bathroom, looked into her kitchen, and a closet in her living room. They asked her if she had a firearm in the residence (Board Review 02).

§ 87(2)(b) said over the phone that the officers were opening bins in the hallway of the residence. They entered § 87(2)(b)'s and § 87(2)(b)'s bedrooms. § 87(2)(b) left for work during the time that the officers were present (Board Review 03).

§ 87(2)(b) was not present at the time that PO Dunne searched § 87(2)(b).

As mentioned above, § 87(2)(b) could not be reached by the investigation (Board Review 04).

PO Dunne testified that as the most senior officer on the scene, he took charge in searching the apartment. He responded to a call of an injured person at the residence. He saw the door already open when he came to the residence, and went inside. The officers who arrived on scene first told PO Dunne that a gun was involved in the injury, and that it was potentially still in the house. PO Dunne also saw a fresh, still-wet blood trail from the entrance of the residence to the bathroom. § 87(2)(b) and § 87(2)(b) were in the residence with § 87(2)(b)'s child. PO Dunne was concerned that the child was in danger by the presence of a weapon and asked § 87(2)(b) if he could, for the child's safety, look around for a firearm. He asked § 87(2)(b) twice if she consented to the search, and she affirmed that he could.

He informed the other officers present that he had consent for the search the premises. § 87(2)(b) did not show displeasure or revoke her consent during the search. He did not remove or handle any objects during this search. When § 87(2)(b) told PO Dunne that he did not want him to search the bedroom he was in, PO Dunne did not search that bedroom. He looked in one of the bedrooms—he did not know whose—some closets, and the bathroom. Nothing was recovered

as a result of this search.

When he viewed his body-worn camera footage from IA #129 during his interview, PO Dunne explained that he walked to the back bedroom in order to follow the extent of the blood trail. He could not explain what he was doing with the plastic bag that he is seen holding in the footage in IA #130 (Board Review 29).

PO Tepedino also remembered seeing a pool of blood after he entered, though he did not remember whether it was wet or dry, nor its dimensions. He testified to doing a visual inspection of rooms of the house, but not moving anything in the apartment during the search (Board Review 28).

PO Limoncelli similarly remembered seeing blood in the apartment, but could not remember if it was wet or dry. He remembered doing a search of the residence, but did not recall the extent of this search. After the search, Sgt. McNab, either by phone or in person, though he did not recall her being on scene, told PO Limoncelli to secure the scene as a potential crime scene

In People v. Rossi, 99 A.D.3d 947 (2012) officers responded to a self-inflicted shooting. Children were at the location, and the police did not know where the gun was. The court held that when the police have probable cause to believe a defendant has left a loaded gun in a dwelling, the police can make an emergency search if the weapon poses an immediate danger to children still present in the residence. (Board Review 07).

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Abuse of Authority: On December 21, 2018, Sergeant Joseph Dalbero supervised the search of § 87(2)(b) on Staten Island.

Allegation (E) Abuse of Authority: On December 21, 2018, Detective Tabatha Bronstein searched § 87(2)(b) on Staten Island.

Allegation (F) Abuse of Authority: On December 21, 2018, Detective Ryan Staiano searched § 87(2)(b) on Staten Island.

It is undisputed that at approximately 9:00 a.m., Det. Staiano, Det. Bronstein, and Sgt. Dalbero reported to § 87(2)(b) and that they requested that § 87(2)(b) sign a consent to search form so that they could search the premises.

§ 87(2)(b) said over the phone that plainclothes officers had her sign a form, but she did not provide any additional details about the document. They did so after two Spanish-speaking officers in plainclothes spoke with her. She did not ultimately provide a sworn statement to the investigation (Board Review 02).

§ 87(2)(b) over the phone, said that she did not witness all of the officers' actions while they were in the house (Board Review 03).

§ 87(2)(b) could not be reached by the investigation (Board Review 04).

Det. Staiano remembered only that he stood in the living room of the house to safeguard what he believed at the time was a crime scene. He identified his own name on the consent to search form—which was in English but had no independent recollection of its being signed. He confirmed that his command keeps Consent to Search forms in Spanish on file (Board Review 32).

Det. Bronstein testified that she interviewed § 87(2)(b) in the living room of § 87(2)(b) before she signed the Consent to Search form. She was calm and cooperative, and did not tell the officers to leave. During this conversation, nothing suggested to Det. Bronstein that § 87(2)(b) did not speak English as her first language. Det. Bronstein told § 87(2)(b) that she could refuse consent, but § 87(2)(b) consented to the search of the house anyway (Board Review 33).

Sgt. Dalbero did not remember if consent was obtained to search the residence. He still did

not remember any conversation he or any of his officers had about obtaining consent to search (Board Review 34).

Neither Det. Staiano, Det. Bronstein, nor Sgt. Dalbero remembered any Spanish-speaking officer coming to the residence at the time that they were present. All of them testified that one would have been obtained, had § 87(2)(b) needed one to act as an interpreter.

Upon his initial entry to the residence, PO Dunne attempted to speak to § 87(2)(b) in English, but she did not appear to understand him. He did not know what language § 87(2)(b) spoke, but her perceived that she did not speak English. PO Dunne did not observe any officer on scene speaking Spanish with § 87(2)(b) (Board Review 29).

Det. Dinkle was not present at the time of the other detectives' search, but he testified that he spoke with § 87(2)(b) in English about what occurred. He testified that she spoke enough English to have a productive and coherent conversation with him, but he was aware that she also spoke Spanish.

The Consent to Search Form itself was signed by § 87(2)(b) with Det. Bronstein's and Det. Staiano's signatures also present, indicating that they were witnesses, marked at 9:10 a.m. on December 21, 2018. Sgt. Dalbero was the "reviewing supervisor" of the document (Board Review 11). The form is in English.

§ 87(2)(g)

§ 87(2)(g)

Allegation (G) Offensive Language: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle made remarks to § 87(2)(b) based upon gender.

Allegation (H) Discourtesy: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle spoke discourteously to § 87(2)(b).

It is undisputed that Det. Dinkle interviewed § 87(2)(b) over a period of several hours at the 120th Precinct stationhouse. In that time, Det. Dinkle identified inconsistencies between § 87(2)(b)'s account of what occurred and surveillance footage that he checked to verify § 87(2)(b)'s account of what occurred. § 87(2)(g)

§ 87(2)(b) alleged that he was taken to the 120th Precinct stationhouse by a set of partners in uniform, a white male officer and an Asian male officer. He was held in the Juvenile Holding Room of the 120th Precinct stationhouse while several detectives questioned him about the circumstances of the shooting. Det. Dinkle accused him of giving inconsistent statements, and called him a "bitch-ass motherfucker." At the time Det. Dinkle made this statement, the officers who transported him were present (Board Review 36).

Det. Dinkle testified that he told § 87(2)(b) that he believed that § 87(2)(b) was giving inconsistent statements. He said that it was possible that during his interview that he used profanity, but said that it would have involved interjections, such as "oh, shit," which would not have been directed at § 87(2)(b). He denied specifically calling § 87(2)(b) a "bitch-ass motherfucker."

Det. Dinkle did not recall any narcotics or gang officers interviewing § 87(2)(b). During his interview, he viewed his own DD5 entries regarding this case. They mentioned a conferral with Det. Richard Browne of a Gang Squad Staten Island and Det. Philip Vaccarino of a Narcotics Borough Staten Island, which Det. Dinkle explained as likely having taken place over the phone (Board Review 30).

The two officers who transported § 87(2)(b) from § 87(2)(b), PO Christopher Adinolfi and PO Joseph Quirk, two white male officers were interviewed (Board Review 10 and Board Review 37). They testified to taking § 87(2)(b) to the 120th Precinct stationhouse, and then resuming patrol. They did not know about any Asian male officer having contact with § 87(2)(b) in his time at the 120th Precinct stationhouse. PO Quirk's memo book entries note that he arrived at § 87(2)(b) at § 87(2)(b) and was assigned to other assignments by 10:50 a.m. (Board Review 10).

Det. Dinkle's DD5 entries, are largely illegible, and IAB, upon request, did not present a more legible copy (Board Reviews 12 and 13).

The 120th Precinct command log did not note § 87(2)(b)'s arrival, nor who was with him (Board Review 14).

The Gang Squad Staten Island roll call and movement log did not note the arrival at the 120th Precinct of any other officers (Board Review 15).

Neither the radio runs nor the Resource Recap Log noted any officers being assigned to reassigned to the stationhouse to handle § 87(2)(b) (Board Reviews 06 and 16).

§ 87(2)(g)

Allegation (I) Abuse of Authority: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle detained § 87(2)(b).

Allegation (J) Abuse of Authority: On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle did not provide § 87(2)(b) with medical attention.

It is undisputed that Det. Dinkle questioned § 87(2)(b) after being discharged from § 87(2)(b) § 87(2)(g)

§ 87(2)(b) testified that after he was brought to the 120th Precinct stationhouse from § 87(2)(b) he was questioned by Det. Dinkle. Initially, he went voluntarily with these officers. He was in pain at the time and requested to go to the hospital multiple times. Det. Dinkle, and two other officers, ultimately not identified by the investigation, told him that he could not leave the stationhouse. § 87(2)(b) left the stationhouse at approximately 11:00 p.m., at which point an unidentified officer called an ambulance for him, and he was transported to the hospital (Board Review 36).

Det. Dinkle denied holding § 87(2)(b) in the 120th Precinct stationhouse against his will. During his interview, § 87(2)(b) appeared to be under the use of a drug of some kind, but he did not appear to be in pain. He did not request medical attention and did not evince any signs of pain or discomfort. Eventually, Det. Dinkle realized that § 87(2)(b)'s story of what occurred did not align with the video evidence collected, and he told § 87(2)(b) that § 87(2)(b) could tell the truth, or that the interview could end at that time. He told § 87(2)(b) that he was not being detained (Board Review 30).

While § 87(2)(b) was at the stationhouse, Det. Dinkle left to talk with § 87(2)(b) and § 87(2)(b) and told them that they could pick him up at the stationhouse. Both declined, because they believed § 87(2)(b) to be out of control. Det. Dinkle believed that § 87(2)(b) went home on his own after two hours at the stationhouse (Board Review 30).

Det. Dinkle's DD5 entries for this shooting incident were largely illegible, and IAB did not provide a clearer copy upon request, claiming that they could not be both properly redacted and clearly readable (Board Reviews 12 and 13). The parts that were legible did not note whether § 87(2)(b) was taken to the hospital (Board Review 12).

The command log entries for the 120th Precinct did not indicate anything about § 87(2)(b)

being present at the stationhouse (Board Review 14).

§ 87(2)(g)

Allegation (K) On December 21, 2018, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle seized § 87(2)(b)'s property.

It is undisputed that Det. Dinkle seized and vouchered § 87(2)(b)'s cellphone. § 87(2)(b) testified that on December 21, 2018, he requested his jacket, as he was cold, and he left the hospital with his jacket and cellphone in a bag, but he was given an “information slip,” and not a property voucher. This slip says, “C/V needs property” on it (Board Review 39). On January 8, 2019, while he was being debriefed about his arrest by Det. Dinkle, § 87(2)(b) asked Det. Dinkle about his cellphone. Det. Dinkle said that § 87(2)(b) would get it back at the conclusion of his investigation, and that it could take up to a year to return (Board Review 36).

Det. Dinkle did not independently remember taking § 87(2)(b)'s cellphone. During his interview, he viewed a copy of the voucher, but it did not refresh his recollection regarding anything that happened. He did not remember any discussion about a cellphone during his conversation with § 87(2)(b) (Board Review 30).

Property Voucher #§ 87(2)(b) prepared on December 22, 2018 at 9:35 a.m. indicated that Det. Dinkle vouchered § 87(2)(b)'s cellphone for investigatory purposes. The relevant penal code description was listed as 120.05: assault. It does not include any other information as to why the cellphone was vouchered (Board Review 17). As mentioned above, the DD5 entries are illegible to a large degree, but do not mention a cellphone in the readable sections (Board Review 12).

§ 87(2)(f)

Allegation (L) Offensive Language: On January 8, 2019, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle made remarks to § 87(2)(b) based upon gender.
Allegation (M) Discourtesy: On January 8, 2019, at the 120th Precinct stationhouse on Staten Island, Detective Richard Dinkle spoke discourteously to § 87(2)(b).

It is undisputed that after § 87(2)(b) was arrested on January 7, 2019, he was debriefed by Det. Dinkle at the 120th Precinct stationhouse regarding any additional information he may have about his shooting or other crimes. This debriefing took place on January 8, 2019.

§ 87(2)(b) alleged that during this debriefing, which took place in an upstairs room of the stationhouse, Det. Dinkle called him a “bitch-ass motherfucker” (Board Review 36).

Det. Dinkle denied that he used this phrase or directed any profanity at § 87(2)(b) during the arrest debriefing on January 8, 2020 (Board Review 30).

§ 87(2)(f)

Allegation (N) Abuse of Authority: On December 21, 2018, at § 87(2)(b) on Staten Island, Police Officer John Tepedino did not provide a business card to § 87(2)(b).

Allegation (O) Abuse of Authority: On December 21, 2018, at § 87(2)(b) on Staten Island, Police Officer Anthony Limoncelli did not provide a business card to § 87(2)(b).

Allegation (P) Abuse of Authority: On December 21, 2018, at § 87(2)(b) on Staten Island, Police Officer Stephen Dunne did not provide a business card to § 87(2)(b).

It is not in dispute that PO Limoncelli, PO Tepedino, and PO Dunne failed to provide their business cards to § 87(2)(b) when they searched § 87(2)(b) on Staten Island. § 87(2)(b)

testified that she did not receive a business card from any officer. § 87(2)(b) said over the phone that she received a business card from the officers at the scene, but did not provide this business card to the CCRB.

PO Limoncelli testified that he did not provide any business cards to anyone, as he was not sure if he was equipped with them at the time. He was not aware of any other officer providing business cards (Board Review 27).

PO Tepedino testified that neither he nor any other officer provided any business cards to civilians in the residence as PO Tepedino did not believe that he had any, and no civilian requested them (Board Review 28).

PO Dunne testified that he did not give a business card to § 87(2)(b) because he was not assigned any business cards. He was not aware if there were any generic business cards at the stationhouse at the time. He did not write down his information and provide to any of the civilians. None of the civilians requested it (Board Review 29).

New York City Administrative Code §14-174 requires that officers who engage in a law enforcement action that does not result in a summons or arrest offer a business card to the subject of that action (Board Review 18).

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three complaints with the CCRB. § 87(2)(b)
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- This is the second CCRB complaint involving § 87(2)(b) § 87(2)(b)
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§ 87(2)(b).
- This is the fourth CCRB complaint involving § 87(2)(b) § 87(2)(b)
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§ 87(2)(b)
- PO Limoncelli has been a member of service for four years. This is the first CCRB complaint filed against him.
- PO Tepedino has been a member of service for three years. One prior case and one prior allegation have been filed against him, and it was not substantiated.
 - § 87(2)(g)
- Det. Dinkle has been a member of service for 15 years. Two prior complaints and three prior allegations have been filed against them. None has been substantiated.
- PO Dunne has been a member of service for 14 years. This is the first CCRB complaint filed against him.
- Sgt. Dalbero has been a member of service for 12 years. Three prior CCRB complaints, with 13 prior allegations have been filed against him, of which three allegations, a frisk, search of person, and vehicle search, have been substantiated. The CCRB recommended formalized training, and the NYPD imposed formalized training.
 - § 87(2)(g)
- Det. Bronstein has been a member of service for 21 years. Two prior CCRB complaints, with six prior allegations, have been filed against her. None has been substantiated.
 - § 87(2)(g)
- Det. Staiano has been a member of service for 12 years. One prior CCRB complaint, with two prior allegations, have been filed against him, and have not been substantiated.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the number of involved officers.
- On February 7, 2020, the Office of the New York City Comptroller confirmed that there was no Notice of Claim for § 87(2)(b) or § 87(2)(b) (Board Review 22).

